COURAGE MUGABE
vs
TYSON GORE

HIGH COURT OF ZIMBABWE
CHAREWA J & ZISENGWE J
MASVINGO 28 July & 1 December 2025
Judgment delivered on 1 December 2025

S.T. Farai; for the appellant
D. Sanhanga; for the respondents

Civil appeal

ZISENGWE J: This is an appeal against the whole judgment of the Magistrates Court sitting at Kwekwe (the court *a quo*) dismissing the appellant's application for rescission of default judgment. He contends that the court *a quo* erred and misdirected itself on a number of key issues in arriving at that decision lending itself to being interfered with on appeal.

The chronology of events leading to the court *a quo*'s dismissal of application for rescission of judgment are the following: on 21 March 2024, the respondent sued out summons from the court *a quo* seeking the payment of US $5 500 being money advanced to the appellant at the latter's specific instance and request. In terms of the summons the said sum of money was advanced to the plaintiff on 4 May 2023 and was to be paid back on or before 5 June 2023 which he failed to do. Further, in terms of the respondent's particulars of claim attached to the summons, he, i.e., respondent had previously instituted an application to compel the appellant to pay the said sum of money but that application was dismissed on the basis that there were material disputes of fact incapable of resolution on the papers.

He therefore sought an order granting him judgement in the sum of US $5 500 together with interest thereon at the prescribed rate calculated from the date of issuance of summons to date of full payment as well as costs of suit on the superior scale.

According to the Messenger of Court's return of service, summons was served at defendant's place of residence at 80 BD Mine Kwe-kwe on 26 March 2024. The messenger of court further stated on the said return that summons had been served on the defendant's father, one Kandros Mugabe.

On 9 April 2024, the respondent successfully applied for default judgment after the appellant had failed to enter appearance to defend within the *dies induciae*. Two days later, a warrant of execution against property was issued at the instance of the respondent's legal practitioners, Messrs *Mavhiringidze* & *Mashanyare* Legal Practitioners.

It was then that the appellant sprang into action and mounted an application for the rescission of that default judgment. He filed this application on 15 April 2024. In this regard he deposed to a lengthy affidavit in support of the application the sum total of which was to the following effect, that he was not indebted to the respondent at all. He denied having deposed to the affidavit which the respondent relied upon as a written acknowledgment of debt. He pointed out then, as he had similarly done in the claim brought under No. KKGL 355/23 that he had not deposed to that affidavit ostensibly constituting the acknowledgement of debt. He further pointed out that in any event the affidavit was a nullity because it was not duly commissioned as required.

Perhaps most importantly, he averred that the same claim had earlier been brought against him by the respondent but on that occasion, it was by way of application proceedings. This was under Case No. KKGL 355/23. He averred that the claim had been dismissed by the court. According to him this therefore meant that matter was *res-judicata* and that that judgment not having been appealed against remained extant. The corollary being that the respondent could not purport to institute the same claim without the judgment dismissing it having been lawfully displaced.

As far as the reason for default is concerned, the respondent averred that he never received the summons as same was served at an address unknown to him. He averred that it was neither served at the address where he was previously resident, namely at 86 BD Mine nor was it served at his new address at 9 Giles Road, Chicago, Kwekwe. He stated that the appellant was well aware

of his correct address for service. As far as the reason for the delay in applying for rescission was concerned, he stated that he was away in Victoria Falls on some private business having flown there on 2 April 2024 and returning on 10 April 2024 and in the interim he was unaware of the legal proceedings against him.

With regards to prospects of success on the merits, he completely denied having borrowed any amount of money from the respondent and that it was him who had in fact lent respondent the sum of US $40 000 at some point in the past. He gave details of that alleged transaction. He raised all manner of issues against the validity of the affidavit purportedly constituting the acknowledgment of debt. He *inter alia* referred to the purported variance between the amounts acknowledged *vis-à-vis* the amount accrued; he distanced himself from the handwriting on the affidavit, that it bore three different handwritings and that it was not commissioned at all by a commissioner of oaths.

He therefore implored the court to grant his application for the rescission of that default judgment, further contending as he did that no prejudice would befall the respondent should the court be inclined to do so.

Needless to say, the application for the rescission of the default judgment was opposed by the respondents. As far as the contention that his matter was *re judicata* is concerned the respondent countered by averring that the matter under KKGL 335/23 had in fact been decided on technicalities and that therefore it was not *res judicata* as it had not been decided on the merits.

As far as the wilfulness or otherwise of the default was concerned, he maintained that the appellant's address was the very address where the summons was served namely at 80 BD Mine Kwe-kwe. He further pointed out that the signature on the acknowledgement of debt which appellant strove to distance himself from, ironically resembled the one on the affidavit of the very application for rescission.

He further observed that the documents annexed to the applicant's affidavit did precious little to buttress his assertions of him being unaware of the summons. He therefore maintained that appellant's default was wilful.

On the merits he contended that the appellant simply had no defence to the claim as evidenced by the acknowledgment of debt. He also completely denied owing the appellant any money at all.

The appellant filed an answering affidavit not only responding to the respondent's assertions but also raising a number of preliminary issues. The first was that the notice of opposition was defective in that it was not titled as a "Notice of opposition" but, merely as an opposing affidavit. Further in this regard, he criticised the respondent for not disclosing when he received the application.

The second preliminary point which he raised was that the respondent had filed his opposing affidavit out of time. He averred that the opposing affidavit was served on his legal practitioners on 26 April 2024 and therefore outside the seven days prescribed by the rules and further that it was filed less than 48 hours needed before the date scheduled for hearing namely 29 April 2024. He therefore sought to have his application for rescission deemed unopposed given that no application for condonation for late filing of opposing papers was sought and obtained.

On the merits he reiterated that the application under KK GL 355/23 was dismissed and therefore the matter was *res judicata*. He also basically repeated, *albeit* with greater emphasis all the averments contained in his founding affidavit stating as he did that the summons was not served on him and was served at a wrong address. He also reiterated that the respondent owes him $6 000 and that the affidavit constituting the supposed acknowledgement of debt was defective in the ways stated hereinbefore.

The parties submitted comprehensive arguments in support of their respective positions.

In its ruling deliver on 26 June 2024 the court a quo dismissed the application for the rescission of default judgment. It relied *inter alia* on the provisions of order 30 (4) (1) of the Magistrate (Civil) Rules, 2019. It then dealt with the requirements for rescission and referred to several case law authorities on the subject.

Most importantly, on the question of wilfulness, the court *a quo* found that the address where the summons had been served was the appellant's *domicilum citandi et executandi*, namely 80 BD Mine which in this case appeared *ex-facie* the affidavit giving rise to the dispute. It further pointed out that there was no evidence of the appellant's professed change of that *domicilum citandi*.

The court *a quo* further ruled that service effected in the manner depicted on the messenger of court's return of service was compliant with the relevant rule of court, namely Order 7 Rule 5

of the Magistrates Court (Civil) Rules. The court, after referring to relevant case law *dicta* on the subject concluded that appellant's default was wilful.

It further proceeded to dismiss appellant's contention that he was away and therefor unable to timeously react to the summons.

On the question of prospects of success, the court *a quo* stated that it had had sight of the record under KK 355/23 and noted what it deemed to be glaring inconsistences in appellant's defence to that claim. It also pointed out that it had sight of the affidavit constituting his acknowledgment of debt and was satisfied that it met all the requirements of a valid affidavit. The court *a quo* concluded that the affidavit was a proper acknowledgment of debt which satisfied all the requirements thereof. It also indicated that it carried out a comparison of the original affidavit *vis-s-vis* the various court documents filed of record and was convinced that the signature on the former document matched the ones on the latter.

It therefore concluded not only that the appellant was in wilful default but also that he had no prospects to success hence it dismissed the application for rescission of default judgment.

Aggrieved by that outcome, the appellant mounted the present appeal raising as he did ten grounds of appeal grounds of appeal and seeking the following relief in the event of the appeal succeeding:

1. The appeal be and is hereby allowed with costs.
2. The judgment of the court a quo under KK82/24 dated 26 June 2024 dismissing the applicant's court application for rescission of default judgment be and is hereby set aside.
3. The record is hereby remitted to the court a quo for deliberation of the preliminary points that were raised by the applicant therein.

ALTERNATIVELY

1. The appeal be and is hereby allowed with costs.
2. The judgment of [the] court a quo under KKGL 82/24 dated 26 June 2024 dismissing the appellant's court application for rescission of judgment be and is hereby set aside and in its place the following is substituted:
    i) The court application for rescission of default judgment be and is hereby granted.

ii) The default judgment granted on the 10th of April 2024 against the applicant is hereby rescinded.

iii) The applicant shall file his notice of appearance to defend within 7 days of the granting of this order.

iv) The costs of suit shall lie in the main matter"

It shall not be necessary to set out the entire decade of grounds of appeal given that during the hearing of the appeal all but a handful of the grounds of appeal fell by the wayside; the rest having been abandoned. Only grounds 1, 2 and 8 remained.

Ground 8 reads:

> "The court a quo grossly misdirected itself at law and facts when it made reference to an original affidavit under case No. KKGL355/23 when in fact there was never any affidavit to begin with but a document which was not commissioned and whose origins have never been produced either as an attachment or before the court a quo"

During the appeal hearing, the court ruled that the above ground was invalid for want of clarity. In particular, the court found that it was not clear whether the basis of complaint was that the original affidavit was not produced or that it was not commissioned. Further this ground of appeal failed to direct the court as to which specific affidavit was being attacked given that there was more than one affidavit in dispute. Finally, the court found that the ground failed to direct the court to the precise component of the application for rescission the impugned affidavit impacted. It was for that reason that ground 8 was held to be invalid and accordingly struck out.

That left grounds 1 and 2 as the only surviving valid grounds of appeal.

Counsel made submissions in support of the parties' respective positions at the conclusion of which they requested the court to hold its judgment in abeyance pending the outcome of the discussions which the parties intended to hold with a view to settling the matter. Apparently the discussions failed to bear fruit hence this judgment.

It is however to ground 2 to which we first turn.

Ground 2 reads:

> "The court *a quo* erred at law when it determined the application based on Order 30 rule (4) (1) of the Magistrates Court (civil) Rules, 2019 when the application was bought in terms of Order 30 rule (1) of the Magistrates Court (civil) Rules, 2019 as read with s 31 of the Magistrates Court Act *[Chapter 7:10]*."

Although the court *a quo* did refer in paragraph 1 of its judgment to Order 30 (4) (1) of the Rules, it proceeded to properly consider the application on the basis of the provisions of Order 30 Rule (1) of the Rules. It decided the matter on the twin questions of the reasons why the applicant did not appear or file his or her plea (the wilfulness part of the inquiry) and the grounds or defences to the action or proceedings in which the judgment was given or of objection to the judgment (the "prospects of success" part of the inquiry).

Reference to Order 30 Rule (4) was merely an error in the citation of the relevant law on the part of the court *a quo* which error neither influenced its decision, nor prejudicially affect either party. This ground is therefore dismissed.

Ground 1 on the other hand reads:

> "The court *a quo* erred at law when it completely failed to deliberate on the preliminary issues that were raised by the appellant."

This ground is a different kettle of fish. The trite position is that the court must address all preliminary points raised by the parties unless one of them disposes of the matter see *PG Industries (Zimbabwe) Ltd* v *Mark Bvekerwa & 34 Ors* SC-53-2016; *Halwick Investments (Pvt) Ltd* v *Nyamwanza* 2009 (2) ZLR 400 (S) at 406-407; *Gwaradzimba* v *CJ Petron Company (Pvt) Ltd* 2016 (1) ZLR 289 (S).

We do not find merit in the proposition that the points in *limine* were implicitly dismissed by the court *a quo*'s silence on those two points. The court *a quo* needed to directly confront the points in *limine* and deliver its ruling thereto. It did not. That amounted to an irregularity vitiating the proceedings.

It suffices however to point that it would not be competent to remit the matter for a determination of the points in *limine* only, leaving the ruling on the merits intact, as suggested in the main relief sought. Once it is found that there was a material misdirection in failing to address the points *in limine*, the entire judgment has to be vacated and a hearing de novo instituted.

It is for that reason that we give the following order:

a) The appeal is allowed with no order as to costs.

b) The decision of the court *a quo* be and is hereby set aside, and

c) The matter is hereby remitted to the court *a quo* for a hearing *de novo* before a different Magistrate.

Farai & Associates; appellants' legal practitioners.

Mangwiro Tandi Law Chambers; respondents' legal practitioners